AMENDMENT NO. 1 TO THE MASTER SERVICES AND PURCHASING AGREEMENT BETWEEN THE CITY OF SAN MATEO AND AXON ENTERPRISE, INC. FOR HARDWARE, SOFTWARE AND SERVICES FOR THE POLICE DEPARTMENT (Original Amount: $7,350,052.13; New Amount $8,495,312.58)

This Amendment is made and entered into this ____ day of October, 2026, by and between the CITY OF SAN MATEO, a municipal corporation existing under the laws of the State of California ("CITY"), and AXON Enterprise, Inc. (“CONTRACTOR”).

WHEREAS, the City and CONTRACTOR entered into a Master Services and Purchasing Agreement for Hardware, Software and Services for the Police Department (“Agreement”) on December 10, 2024; and

WHEREAS, City and CONTRACTOR wish to amend the Agreement to purchase automated license plate readers (ALPR); to include security and privacy language applicable to access to Criminal Justice Information Services (CJIS) material; to require compliance with applicable California law prohibiting vendors from disclosing ALPR data to unauthorized third parties; and to set forth requirements for disclosure in the event of a security breach.

NOW, THEREFORE, the parties agree as follows:

1. Exhibit D detailing Quote Q-865809-009 is added to the Agreement.

2. Section 17 – “Termination” of the Agreement is amended to add:
   17.5 – **Applicability**. These terms do not apply to Quotation Q-865809-009, which may be terminated in accordance with the terms specified on the quotation itself.

3. Section 20 – “Security” is added to the Agreement to read:
   20.1 **California Civil Code Compliance.** Contractor is advised of, and agrees to comply with, the requirements of the California Civil Code, Division 3, Part 4, Title 1.81.23 COLLECTION OF LICENSE PLATE INFORMATION [§§1798.90.5 - 1798.90.55] as applicable to an automated license plate recognition (ALPR) operator. To the extent the ALPR services involve the collection, access to, storage, use, or disclosure of ALPR information on behalf of the City, Contractor shall maintain reasonable security procedures and practices appropriate to the nature of such information and consistent with applicable law and the security and privacy requirements otherwise applicable to the services under this Agreement. Contractor shall maintain compliance with applicable Criminal Justice Information Services (CJIS) Security Policy requirements.

   20.2 **Disclosure of Security Breach.** Contractor is advised of the requirements of the California Civil Code, section 1798.29, requiring notification to any resident of California in the event of breach of the security of the system. Contractor agrees it will notify the City immediately (and in no event more than 48 hours) upon the known occurrence of any breach in the security of data that may potentially trigger the need for security breach notifications pursuant to Civil Code section 1798.29 or similar State or Federal law.

4. The following Axon Device Specific Terms and Conditions are added to the Agreement as under the Axon Fleet Appendix follows:

a. Axon Outpost.

i. Installation. Contractor shall be responsible for initial installation of all Axon Outpost devices and associated equipment provided under this amendment. Contractor shall coordinate with Customer regarding the location and scheduling of installation and shall provide all labor, tools, equipment, mounting hardware, configuration, and all other services reasonably necessary to install, configure, and place the devices into operational service at locations designated by the Customer. Unless otherwise expressly stated in the Amendment, all costs associated with the installation and configuration of the devices shall be included in the fees and shall be at no additional cost to the City. Customers will obtain, maintain all legally required permits, authorizations, and/or licensing in order to place, maintain, and/or remove the Axon Outpost device at the installation location, including licenses or permits for fixed installation of poles. If mutually agreed by the Parties, Axon or an Axon authorized subcontractor may assist with obtaining the necessary local, state, or Federal approvals before installing Axon Outpost.

ii. Vandalism or Motor Vehicle Accident Warranty. If Customer purchases the Vandalism and Accident warranty, Axon will provide up to two (2) replacements per warranty purchased if your Outpost is damaged due to vandalism or a motor vehicle accident. Axon will make a commercially reasonable effort to provide new installation free of charge, but installation may require additional cost. Axon does not provide refunds or credits if the warranty is not used during the Term f the Quote.

5. The remaining terms of the MSPA remain in full force and effect.

IN WITNESS WHEREOF, CITY OF SAN MATEO and AXON ENTERPRISE, INC. have executed this Agreement the day and year as indicated below.

CITY OF SAN MATEO

Ed Barberini Date
Chief of Police

CONTRACTOR: AXON ENTERPRISE, INC.

Robert Driscoll Date
Deputy General Counsel

APPROVED AS TO FORM

Bahar Abdollahi Date
Assistant City Attorney

EXHIBIT D

Axon Enterprise, Inc.
17800 N 85th St, Scottsdale, Arizona 85255, United States
VAT: 86-0741227
Domestic: (800) 978-2737 | International: +1 800.978.2737

Q-865809-009 Acct: 105721

Issued	**Sep 5, 2026**
Expires	**Oct 16, 2026**
Payment Terms	**N30**
Mode of Delivery	**AUTO-GND**

San Mateo Police Dept. - CA

Currency: USD

CUSTOMER DETAILS

SHIP TO
San Mateo Police Dept. - CA
200 Franklin Pkwy
San Mateo, CA
94403-1921
USA

BILL TO
San Mateo Police Dept. - CA
200 Franklin Pkwy
San Mateo, CA
94403-1921
USA

SALES REPRESENTATIVE
Tierney Stuhr
Phone: (480) 712-4910
Email: tstuhr@axon.com

PRIMARY CONTACT
Edmund Barberini
Email: ebarberini@cityofsanmateo.org

QUOTE SUMMARY

Program Length	**98 Months**
Contract Start	**Nov 15, 2026**
Contract End	**Jan 14, 2035**
TOTAL CONTRACT	
Net Total	**$1,112,613.70**
Est. Tax	**$32,646.75**
Total Contract Value	**$1,145,260.45**

DISCOUNT SUMMARY

List Price	**$2,181,750.89**
Total Savings	**$1,069,137.19**
Discount	**49.00%**
Avg. Savings / Year	**$130,914.76**

PAYMENT SUMMARY

DATE	SUBTOTAL	EST. TAX	TOTAL
Jun 1, 2028	$140,867.59	$4,133.38	$145,000.97
Jun 1, 2029	$146,502.29	$4,298.73	$150,801.02
Jun 1, 2030	$152,362.39	$4,470.68	$156,833.07
Jun 1, 2031	$158,456.87	$4,649.51	$163,106.38
Jun 1, 2032	$164,795.15	$4,835.48	$169,630.63
Jun 1, 2033	$171,386.96	$5,028.91	$176,415.87
Jun 1, 2034	$178,242.45	$5,230.06	$183,472.51
Total	**$1,112,613.70**	**$32,646.75**	**$1,145,260.45**

SUMMARY PRICING FOR TERM

ITEM	DESCRIPTION	QTY	TERM (START)	UNBUNDLED	LIST PRICE	NET PRICE	SUBTOTAL	EST. TAX	TOTAL
TRANSFER BALANCE									
103070	Outpost TAP Bundle True-Up	40	22 (11/2026)	—	$102.50	$0.00	$0.00	$0.00	$0.00
103070	Outpost TAP Bundle True-Up	14	34 (11/2026)	—	$104.59	$0.00	$0.00	$0.00	$0.00
					Transfer Balance Total		$0.00	$0.00	$0.00
VEHICLE INTELLIGENCE									
B00075	OUTPOST DONOR BUNDLE	5	60 (11/2026)	$308.72	$229.10	$0.00	$0.00	$0.00	$0.00
B00076	Outpost TAP Plan	40	98 (11/2026)	$370.14	$260.73	$215.64	$845,316.32	$23,177.29	$868,493.61
B00074	Outpost Extension Plan	5	38 (11/2031)	$210.48	$149.69	$0.00	$0.00	$0.00	$0.00
B00076	Outpost TAP Plan	14	86 (11/2027)	$380.62	$256.88	$222.01	$267,297.38	$9,469.46	$276,766.84
					Vehicle Intelligence Total		$1,112,613.70	$32,646.75	$1,145,260.45
							SUBTOTAL	EST. TAX	TOTAL
	Total						$1,112,613.70	$32,646.75	$1,145,260.45

DELIVERY SCHEDULE

ESTIMATED SHIPPING DATE: Oct 15, 2026

Shipping Location: **200 Franklin Pkwy, San Mateo, CA, 94403-1921, USA**

HARDWARE	QTY
Axon Outpost - Battery & Charger Enclosure - Extended	45
Axon Outpost - Camera	46
Axon Outpost - Pole - Standard	45
Axon Outpost - Solar Panel - 100W	45
Axon Outpost - Standard Solar Hardware Kit	45
Axon Outpost - Top Mount End Cap - Standard	45
SERVICES	**QTY**
Axon Outpost - Standard Installation	45
Axon Outpost - Upgrade Installation	40
WARRANTIES	**QTY**
Axon Outpost - Ext Warranty - Camera	46
Axon Outpost - Maintenance	45

ESTIMATED SHIPPING DATE: Nov 15, 2026

Shipping Location: **200 Franklin Pkwy, San Mateo, CA, 94403-1921, USA**

SOFTWARE	QTY
Axon Vehicle Intelligence - ALPR License	45

ESTIMATED SHIPPING DATE: Oct 15, 2027

Shipping Location: **200 Franklin Pkwy, San Mateo, CA, 94403-1921, USA**

HARDWARE	QTY
Axon Outpost - Battery & Charger Enclosure - Extended	14
Axon Outpost - Camera	14
Axon Outpost - Pole - Standard	14
Axon Outpost - Solar Panel - 100W	14
Axon Outpost - Standard Solar Hardware Kit	14
Axon Outpost - Top Mount End Cap - Standard	14
SERVICES	**QTY**
Axon Outpost - Standard Installation	14
Axon Outpost - Upgrade Installation	14
WARRANTIES	**QTY**
Axon Outpost - Ext Warranty - Camera	14
Axon Outpost - Maintenance	14

ESTIMATED SHIPPING DATE: Nov 15, 2027

Shipping Location: **200 Franklin Pkwy, San Mateo, CA, 94403-1921, USA**

SOFTWARE	QTY
Axon Vehicle Intelligence - ALPR License	14

ESTIMATED SHIPPING DATE: Oct 15, 2031

Shipping Location: **200 Franklin Pkwy, San Mateo, CA, 94403-1921, USA**

HARDWARE	QTY
Axon Outpost - TAP Refresh One - Battery Enclosure Extended	40
Axon Outpost - TAP Refresh One - Camera	41
WARRANTIES	**QTY**
Axon Outpost - Ext Warranty - Camera	5
Axon Outpost - Maintenance	5

ESTIMATED SHIPPING DATE: Nov 15, 2031

Shipping Location: **200 Franklin Pkwy, San Mateo, CA, 94403-1921, USA**

SOFTWARE	QTY
Axon Vehicle Intelligence - ALPR License	5

ESTIMATED SHIPPING DATE: Oct 15, 2032

Shipping Location: **200 Franklin Pkwy, San Mateo, CA, 94403-1921, USA**

HARDWARE	QTY
Axon Outpost - TAP Refresh One - Battery Enclosure Extended	14
Axon Outpost - TAP Refresh One - Camera	14

ESTIMATED SHIPPING DATE: Jan 14, 2035

Shipping Location: **200 Franklin Pkwy, San Mateo, CA, 94403-1921, USA**

HARDWARE	QTY
Axon Outpost - TAP Refresh Two - Battery Enclosure Extended	54
Axon Outpost - TAP Refresh Two - Camera	55

TERMS & CONDITIONS

Tax is estimated based on rates applicable at date of quote and subject to change at time of invoicing. If a tax exemption certificate should be applied, please submit prior to invoicing.

STANDARD TERMS AND CONDITIONS

Axon Master Services and Purchasing Agreement:
This Quote is limited to and conditional upon your acceptance of the provisions set forth herein and Axon's Master Services and Purchasing Agreement (posted at https://www.axon.com/sales-terms-and-conditions), as well as the attached Statement of Work (SOW) for Axon Fleet and/or Axon Interview Room purchase, if applicable. In the event you and Axon have entered into a prior agreement to govern all future purchases, that agreement shall govern to the extent it includes the products and services being purchased and does not conflict with the Axon Customer Experience Improvement Program Appendix as described below.

ACEIP:
The Axon Customer Experience Improvement Program Appendix, which includes the sharing of de-identified segments of Agency Content with Axon to develop new products and improve your product experience (posted at www.axon.com/legal/sales-terms-and-conditions), is incorporated herein by reference. By signing below, you agree to the terms of the Axon Customer Experience Improvement Program.

Acceptance of Terms:
Any purchase order issued in response to this Quote is subject solely to the above referenced terms and conditions. By signing below, you represent that you are lawfully able to enter into contracts. If you are signing on behalf of an entity (including but not limited to the company, municipality, or government agency for whom you work), you represent to Axon that you have legal authority to bind that entity. If you do not have this authority, please do not sign this Quote.

EXCEPTIONS TO STANDARD TERMS AND CONDITIONS

Co-Term Provision:
This Quote is issued under and incorporated into the Master Services and Purchasing Agreement between Axon Enterprise, Inc. and San Mateo Police Department executed on December 10, 2024. Notwithstanding any subscription term stated elsewhere in this Quote, all subscriptions purchased under this Quote are coterminous with the applicable subscriptions under the December 10, 2024 agreement.

Termination for Convenience:
Customer may terminate this Quote for convenience upon at least sixty (60) days' prior written notice to Axon. Any such termination will be subject to the Termination provisions of the underlying Agreement, including Customer's obligation to pay all amounts due through the effective date of termination and any applicable hardware charges, discounts, credits, or other amounts triggered by early termination.

Notwithstanding the foregoing, if Customer terminates this Quote during the initial twelve (12) months of the contract term, Customer will not be subject to any applicable MSRP reconciliation. Any termination occurring after the initial twelve (12) months of the contract term will be subject to the payment obligations outlined in the underlying Agreement, including any applicable MSRP reconciliation. Except as expressly provided in the underlying Agreement, prepaid fees are non-refundable.

Rewrite Estimates
Estimated Amounts and Contract Terminations. Any amounts stated as due under existing or terminated contracts — including contract transfer balances carried forward to new or pending contracts — are estimates based on payments received as of the calculation date. These estimates may be adjusted if new contracts are not executed on the anticipated dates or if expected payments are not made.

Refresh Shipment Timing
Technology Assurance Plan (TAP) Refresh Prior to Renewal. For Customers with expiring agreements that include TAP refresh rights, Axon may, in its discretion, ship refresh hardware under the existing contract while renewal or replacement agreements are in progress. Any such shipments will be deemed made under the terms of the existing contract until the new contract is fully executed, after which any applicable updates, fees, or adjustments will apply.

Shipment Timing
Shipment Variance . Estimated shipment dates are provided for planning purposes only and are not guarantees. Axon may ship hardware before or after the estimated shipment date, and failure to meet an estimated shipment date will not, by itself, constitute a breach, provided Axon uses commercially reasonable efforts to meet estimated shipment dates.

Signature
9/5/2026

Date Signed

OUTPOST SOW

1. Purpose

This Statement of Work ("SOW") outlines the scope, responsibilities, and installation details for Axon as part of the Customer's purchase of Axon Outpost. This SOW operates under the terms of the Agreement. All capitalized terms in this SOW shall have the same meaning as the Agreement.

2. Scope of Work

Axon and Axon authorized subcontractors will install and maintain Axon Outpost on selected Customer owned properties.

3. Installation Location

Customer grants Axon the right to install and maintain Axon Outpost at location sites approved by Axon.

3.1. If location sites have not been selected or assessed at the time of contract signature, Axon reserves the right to invoice the Customer for additional install complexities not accounted for in the initial quote.

4. Installation, Validation, and Support

4.1. Site Selection and Assessment. Axon will support site selection and assessment. Assessments may be conducted virtually or in-person and may include confirmation of visibility/coverage, cellular strength, solar feasibility, and access to AC power sources.

4.1.1. For all existing infrastructure installation sites, Customer is responsible for condition of existing infrastructure.

4.1.2. If during a site walk it has been deemed that an installation is more complex than initially quoted, Axon reserves the right to invoice Customer for the additional cost of installation.

4.1.3. If Axon deems a selected location site is not suitable for installation, a new site must be selected and assessed.

4.2. Permitting. Axon will assist with obtaining the necessary local, state, or Federal approvals before installing Outpost. All permitting fees are the responsibility of the customer. All permit licenses will be in the name of the customer.

4.3. Installation. Axon will install all Axon Outpost hardware and agreed-upon pole (where applicable).

4.3.1. Solar Sites. For sites with solar power, Axon will: (a) install the Outpost camera, battery, and solar panel; (b) ensure the camera is connected to power and LTE; (c) ensure the camera is set at the optimal capture angle; (d) ensure the panel is installed for optimal sun exposure.

4.3.2. AC Sites. For sites with AC power, Axon will: (a) install the Outpost camera and AC adapter; (b) ensure the camera is set at the optimal capture angle. Axon will not conduct any electrical work to connect the AC adapter to power. The customer may work with a licensed electrician to connect the camera to power. Or, If requested, the customer may request for Axon to coordinate with a licensed electrician for an additional cost.

4.3.3. Existing Infrastructure Installations. If selected infrastructure has existing camera(s), Axon will remove the hardware before installing Outpost. Axon will not dispose of equipment, repair any surfaces or structures, or remove underground cables or conduit.

4.3.4. Standard and Advanced Installations. For Standard or Advanced installations, Axon will install a breakaway or MASH approved pole, respectively. Axon will call 811 prior to installation.

4.3.5. DOT Pole Installation Service. Axon will install Outpost on existing DOT poles and ensure compliance with DOT guidelines. Axon will not install DOT poles.

4.3.6. Complex Location Sites. Complex location sites require a custom SOW and include, but are not limited to, toll booths, bridges and overpasses, federal or military land, areas with restricted access or high security, flood zones, railway crossing, mountainous or hilly terrain.

4.3.7. Exclusions. Installation services do not include the following, unless specifically scoped in a custom SOW: electrical work, concrete drilling, bucket truck or non-standard equipment rental, trenching, tree trimming, custom engineered drawings or traffic plans, traffic control beyond basic MUTCD traffic control, environmental impact studies.

5. Power Requirements

5.1. AC-Powered Sites. Axon will provide all necessary equipment compatible with standard AC power configurations. Customer is responsible for contracting a licensed electrician to ensure installation meets NEC (National Electrical Code) standards and the power must be continuous and non-switched to support uninterrupted system operation; all electrical work must comply with local codes and safety regulations.

5.2. Solar-Powered Sites. Installation sites must offer unobstructed southern exposure to maximize solar efficiency. Axon will assess solar viability during site assessment, including shading, positioning, and mounting considerations. Customer will ensure the selected location sites must maintain direct, unobstructed visibility to the sky to ensure consistent solar energy capture. Customer agrees to help maintain environmental conditions that support reliable solar performance (e.g., minimizing nearby shade, vegetation growth).

6. Traffic Control

Axon will provide basic MUTCD traffic control and provide necessary traffic signs, cones, and temporary barriers.

7. Dependencies and Potential Delays

Installation is subject to but not limited by the following factors, which may affect scheduling and completion: delays due to local permitting requirements or jurisdictional approvals; availability and completion of necessary electrical work at the installation site (for AC-powered setups); coordination with Customer and subcontractors, including restricted hours or special access requirements; weather-related delays that may impact site safety or installation feasibility; or any site-specific safety protocols or regulatory requirements that must be satisfied prior to deployment.

8. Training and Onboarding

Axon's team will provide hands-on training for relevant personnel, user credentials and access to supporting applications, and operational guidance tailored to the current system configuration.

9. General Responsibilities

9.1. Axon will: (a) install, configure, and maintain all hardware at designated location site; (b) validate system power, connectivity, and functionality of Outpost; (c) integrate Outpost with Fusus, including NCIC and state hotlists; and (d) will provide training, documentation, and technical support to Customer personnel.

9.2. Customer will: (a) fund and maintain all legally required permits, authorizations, and/or licensing to place, maintain, and/or remove the Outpost at the installation sites; (b) ensure access to installation sites, support device placement communication, and coordinate internally (e.g., facilities, IT, legal, public safety) to facilitate deployment; (c) support scheduling for permitting and local compliance requirements; (d) designate a primary and backup point of contact; and (e) support site selection, utility clearance, and installation approvals.